

24STCV30734 24STCV30734

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C08%2F11%2F2026

Source SHA-256: 500f605b1fd335a5a950d957a90c9f57caeab0e9445bca9bd6a2088bc242491b

Case Number: 24STCV30734 Hearing Date: August 11, 2026 Dept: 617

Dept.

617

Date:

8-11-26

Case

#: 24STCV30734

Trial

Date: 10-12-26

SUMMARY JUDGMENT/ADJUDICATION

MOVING

PARTY: Plaintiff, the People of the State of California

RESPONDING

PARTY: Defendants, 2551 Beverly, LLC, Sophia Woo, Sarah Kim, and Best Wellness Center LLC

RELIEF

REQUESTED

Motion

for Summary Judgment, or, in the Alternative, Summary Adjudication

SUMMARY

OF ACTION

On

November 21, 2024, Plaintiff the People of the State of California filed the instant action against Defendants 2551 Beverly, LLC, Sophia Woo, Sarah Kim, and Best Wellness Center LLC to enjoin and abate an alleged prostitution nuisance at a massage parlor. It alleges the parlor operates from a commercial building at 2551 Beverly Boulevard in Los Angeles, California 90057. It claims that 2551 Beverly owns the property and Woo manages it and Best Wellness, and its principal, Kim, own, manage, and/or control the massage business. Plaintiff asserts claims for violation of the Red Light Abatement Law (RLAL) and the Unfair Competition Law (UCL).

RULING: Granted.

Request

for Judicial Notice: Granted in part.

The

Court only takes judicial notice of the fact that the City of Los Angeles has a population in excess of 750,000. (Evid. Code, § 452, subd. (g).) Judicial notice is not taken of the remaining documents because they are immaterial to the Court's ruling on the motion.

Evidentiary

Objections: Overruled.

Defendants'

evidentiary objections to Plaintiff's evidence are overruled. The objections fail to comply with California Rules of Court, rule 3.1354, because they fail to identify the specific documents containing the objectionable material and the particular statements objected to. (Cal. Rules of Court, rule 3.1354(b).) This alone is grounds to overrule the objections. (*Hodjat v. State Farm Mutual Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9; see *Reid v. Google Inc.* (2010) 50 Cal.4th 512, 532-33 [evidentiary objections must be in "proper form"].) In any event, the Court notes that police reports reflecting the direct observations of an officer are admissible under the official-records exception to the hearsay rule. (Evid. Code, § 1280; *People v. Baeske* (1976) 58 Cal.App.3d 775, 780-81.) A sex worker's solicitation of sex contained within the report is admissible as a "verbal act" of independent legal

significance (i.e., crime of prostitution). (People v. Dell (1991) 232 Cal.App.3d 248, 258-60.) And the “general reputation” of a place is admissible in RLAL actions. (Pen. Code, § 11228.)

The

Court does not rule on Plaintiff's objections to Defendants' evidence because, as explained below, Defendants' asserted facts do not raise a triable issue of material fact. The objections are therefore immaterial to disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Plaintiff

moves for summary judgment arguing that no triable issue of material fact exists as to the existence of a nuisance on the property via the prostitution activity. This constitutes a violation of the RLAL and accordingly a violation of the UCL. They alternatively move for summary adjudication on both causes of action. Defendants oppose the motion, disputing their knowledge and participation in the prostitution activities and claiming credibility issues regarding the reporting officers. Because Defendants' asserted facts and credibility challenges fail to raise triable issues of material fact, Plaintiff's motion is granted.

The pleadings frame the issues for motions, “since it is those allegations to which the motion must respond. (Citation.)” (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On

a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.) A plaintiff moving for summary judgment “has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) “Once the plaintiff . . . has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

Plaintiff

argues that no triable issues of material fact exist because the prostitution activity on the property constitutes a nuisance under the RLAL. The statute provides that “[e]very building or place used for the purpose of . . . lewdness, assignation, or prostitution, and every building or place in or upon which acts of . . . lewdness, assignation, or prostitution, are held or occur, is a nuisance which shall be enjoined, abated, and prevented, and for which damages may be recovered, whether it is a public or private nuisance.” (Pen. Code, § 11225, subd. (a)(1).) The city attorney may “maintain an action in equity to abate and prevent the nuisance and to perpetually enjoin the person conducting or maintaining it, and the owner, lessee, or agent of the building or place, in or upon which the nuisance exists, from directly or indirectly maintaining or permitting it.” (Id. § 11226.)

Plaintiff

has satisfied its initial burden. 2551 Beverly is the owner of the property and Woo is the property’s manager and designated agent. [Appendix of Exhibits, Ex. 5: Grant Deed, Ex. 27: Power of Attorney.] The property was leased to Kim and

Best Wellness owned and operated the massage business. [Id. Exs. 20-21: Kim's Response to Interrogatory No. 50, Ex. 27: Commercial Lease Agreement, pp. 321-27, Ex. 38: Secretary of State Filing, pp. 706-09, Ex. 36: Permit Documents, pp. 629-31, 633, 681-85, 689-91.] Between May 2023 and November 2024, undercover police officers made 4 arrests at the massage parlor for prostitution after masseuses offered to perform sex acts in exchange for money. [Id. Exs. 13-16: Arrest Reports, Exs. 7-10: Officer Declarations.] The prostitution activities are sufficient to meet Plaintiff's initial burden of establishing a violation of the RLAL. (People ex rel. Trutanich v. Joseph (2012) 204 Cal.App.4th 1512, 1521 [unlawful sale, storage, or giving away of marijuana at premises sufficient to meet burden of establishing violation of Narcotics Abatement Law].) Plaintiff likewise meets its burden as to its UCL claim because prostitution in violation of the RLAL is an unlawful business practice under the UCL. (Id. at p. 1525 [violation of Narcotics Abatement Law constituted unlawful business practice under the UCL].) The burden therefore shifts to Defendants to raise triable issues of material fact.

Defendants

fail to meet their burden. Defendants do not dispute that prostitution occurred at the property but instead try to raise triable issues by denying their knowledge of and participation in the prostitution activity as well as asserting credibility challenges regarding the reporting officers. This is insufficient to satisfy their burden. A violation of the RLAL does not require Defendants to have knowledge of or participate in the unlawful activity; the existence of the nuisance is sufficient. (People ex rel. Hicks v. Sarong Gals (1974) 42 Cal.App.3d 556, 561 ["[A] showing of personal knowledge on the part of the owner or operator of the premises is not a prerequisite to relief under the Red Light Abatement Law"]; Lew v. Superior Court (1993) 20 Cal.App.4th 866, 871 [Narcotics Abatement Law "does not require that the unlawful activity which makes the building a nuisance be conducted by the owner of the building, a tenant of the building, or a person entering with permission"].) And Defendants' bare credibility challenges, without evidence controverting the information provided by the reporting officers, do not raise a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (e) ["[S]ummary judgment shall not be denied on grounds of credibility or for want of cross-examination of witnesses furnishing affidavits or declarations in support of the summary judgment . . ."]; Trujillo v. First American Registry, Inc. (2007) 157 Cal.App.4th 628, 636.) Defendants therefore fail to raise a triable issue of material fact and Plaintiff is entitled to summary judgment.

Plaintiff's

motion is therefore granted.

Plaintiff

may separately move for an injunction, civil penalties, and costs and fees. (People ex rel. Feuer v. Superior Court (2015) 234 Cal.App.4th 1360, 1374-76.)

Plaintiff

to give notice.